

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, DC**

**Before the Honorable Clark S. Cheney
Chief Administrative Law Judge**

In the Matter of

**CERTAIN SEMICONDUCTOR
DEVICES, PRODUCTS CONTAINING
SAME, AND COMPONENTS THEREOF**

Investigation No. 337-TA-1500

**RESPONDENTS' UNOPPOSED MOTION FOR EXTENSION OF TIME TO FILE
RESPONSE TO THE COMPLAINT AND NOTICE OF INSTITUTION OF
INVESTIGATION**

Pursuant to Commission Rule 210.13(a) and 210.15(d), Respondents Tower Semiconductor Ltd.; Tower Partners Semiconductor Co., Ltd.; Tower Semiconductor Italy S.r.l.; Tower US Holdings, Inc.; Tower Semiconductor San Antonio, Inc.; Tower Semiconductor NPB Holdings, Inc.; Tower Semiconductor Newport Beach, Inc., and Newport Fab LLC (collectively, “Respondents” or “Tower”), by and through their undersigned attorneys, respectfully move for an extension up to and including June 2, 2026 to file Respondents’ Response to the Complaint and Notice of Institution of Investigation.

Ground Rule 3.2 Certification¹

Pursuant to Ground Rule 3.2, Respondents certify that they have made a reasonable, good-faith effort to contact and resolve the matter with Complainant. Counsel for the parties conferred on May 11, 2026. Complainant does not oppose the motion.

¹ The Investigation was reassigned to Chief ALJ Cheney on May 5, 2026. EDIS Doc. ID 881340. The parties have included this Ground Rule certification to comply with ALJ Elliot’s prior issued Ground Rules out of an abundance of caution. *See* Order No. 2.

Complainant filed its Complaint on March 26, 2026. EDIS Doc. ID 876598. The Commission issued a Notice of Institution of Investigation on April 28, 2026. EDIS Doc. ID 880429. The Notice of Institution of Investigation was published in the Federal Register on April 30, 2026. 91 Fed. Reg. 23305-06 (Apr. 30, 2026). The Commission served the Complaint and Notice of Institution of Investigation on Respondents on April 28, 2026 via express delivery. EDIS Doc. ID 880429. The deadline to respond to the Complaint and Notice of Institution of Investigation is currently May 19, 2026 for the U.S.-based Respondents and May 26, 2026 for the non-U.S. Respondents. 19 C.F.R. §§ 210.13(a), 210.6, 201.16(e), 210.11.

Good cause supports Respondents' requested extension. The extension until June 2, 2026 will line up the response deadline for all named Respondents, will give Respondents the necessary time to review and analyze the allegations in the Complaint, which involves allegations related to numerous categories of accused processes and products and six asserted patents, and will allow Respondents to provide a fulsome response. It further gives the non-U.S. Respondents necessary additional time to collect the information requested by the Commission in its Notice of Institution of Investigation.

Under Commission Rule 210.13(a), the Chief Administrative Law Judge has authority to set the deadline to respond to the Complaint and Notice of Institution of Investigation. 19 C.F.R. § 210.13(a). Unopposed motions for extensions of time to respond to a Complaint like this one are routinely granted. *See, e.g., Certain Power Converters, Circuit Board Assemblies, and Computing Systems Containing the Same*, Inv. No. 337-TA-1484, Order No. 4 (Feb. 27, 2026) (granting unopposed motion to extend time to respond to the Complaint and Notice of Investigation). Granting this unopposed motion will not prejudice any party because this Investigation is in its initial stages and was recently instituted, no Procedural Schedule has been

set, and it will not impact any other date in the Investigation. *See, e.g., Certain Video-Capable Electronic Devices, Including Smart Televisions, Monitors, and Components Thereof*, Inv. No. 337-TA-1495, Order No. 4 (Apr. 14, 2026).

In view of the above, Respondents respectfully request that their unopposed motion be granted.

Date: May 13, 2026

Respectfully Submitted,

/s/ Stephen R. Smith

Stephen R. Smith
Phillip Morton
Samuel Whitt
Patrick Lauppe
Matthew Ritter
David Yun
COOLEY LLP
1299 Pennsylvania Avenue NW
Suite 700
Washington, D.C. 20004-2400
Telephone: +1 202 842 7800
Facsimile: +1 202 842 7899

Eamonn Gardner
COOLEY LLP
1144 15th Street.
Suite 2300
Denver, CO 80202-2686
Telephone: +1 720 566 4000
Facsimile: +1 720 566 4099

Matthew Brigham
COOLEY LLP
3175 Hanover Street
Palo Alto, CA 94304
Telephone: +1 650 843 5000
Facsimile: +1 650 849 7400

Email: Tower_ITC@cooley.com

Counsel for Respondents

CERTIFICATE OF SERVICE

I hereby certify that on May 13, 2026, copies of the foregoing were filed with and served upon the following as indicated:

The Honorable Lisa Barton
Secretary to the Commission
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 112
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☐ Via Box
☐ Via Electronic Mail

The Hon. Chief Administrative Law Judge
Clark S. Cheney
U.S. INTERNATIONAL TRADE COMMISSION
500 E Street SW, Room 317
Washington, DC 20436

☐ Via First Class Mail
☒ Via EDIS
☐ Via Box
☐ Via Electronic Mail

COUNSEL FOR COMPLAINANTS GLOBALFOUNDRIES US INC.

Clement Naples
CLEARY GOTTlieb STEEN & HAMILTON LLP
One Liberty Plaza
New York, NY 10006

☐ Via First Class Mail
☐ Via EDIS
☐ Via Box
☒ Via Electronic Mail

Bert C. Reiser
Sami Al-Marzoog
CLEARY GOTTlieb STEEN & HAMILTON LLP
2112 Pennsylvania Ave, N.W.
Washington, DC 20037

Email:
team-globalfoundries-itc-cgshonly@cgsh.com

Thomas W. Yeh
CLEARY GOTTlieb STEEN & HAMILTON LLP
650 California St, Suite 2400
San Francisco, CA 94108

/s/ Nicholas Fox
Nicholas Fox
COOLEY LLP